

IN THE
Supreme Court of the United States

SYLVIA GEAR, *et al.*,

Applicants,

v.

WISCONSIN STATE LEGISLATURE, *et al.*,

Respondents.

ON APPLICATION TO VACATE STAY DIRECTED TO THE HONORABLE BRETT M.
KAVANAUGH, ASSOCIATE JUSTICE OF THE SUPREME COURT OF THE UNITED STATES
AND CIRCUIT JUSTICE FOR THE SEVENTH CIRCUIT

**EMERGENCY APPLICATION OF PLAINTIFFS IN SYLVIA
GEAR V. WISCONSIN STATE LEGISLATURE TO VACATE STAY**

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PARTIES TO THE PROCEEDING

The parties to the proceeding below are as follows:

Applicants Sylvia Gear, Claire Whelan, Katherine Kohlbeck, Diane Fergot, Gary Fergot, Bonibet Bahr Olsan, Sheila Jozwik, Gregg Jozwik, League of Women Voters of Wisconsin, and Wisconsin Alliance for Retired Americans were plaintiffs in the U.S. District Court for the Western District of Wisconsin and appellees in the U.S. Court of Appeals for the Seventh Circuit.

Defendants below were Marge Bostelmann, Julie M. Glancey, Ann S. Jacobs, Dean Knudson, Robert F. Spindell, Jr., Mark L. Thomsen, the members of the Wisconsin Election Commission, and Meagan Wolfe, Administrator of the Wisconsin Elections Commission. None has appealed the district court's injunction.

Respondents Republican National Committee ("RNC") and the Republican Party of Wisconsin ("RPW") were intervenor-defendants in the district court. They have pursued their own appeal from the district court's injunction, but the Seventh Circuit denied their motion to stay the injunction for lack of standing to appeal. RNC and RPW are briefing the issue of their standing to the Seventh Circuit.

Respondent Wisconsin Legislature intervened as a defendant in the district court proceedings, and is an appellant in the U.S. Court of Appeals for Seventh Circuit.

CORPORATE DISCLOSURE STATEMENT

League of Women Voters of the United States is the parent of Leagues of Women Voters of Wisconsin. Alliance for Retired Americans is the parent of Wisconsin Alliance for Retired Americans. There are no publicly-held companies with a 10% or greater ownership interest in Leagues of Women Voters of Wisconsin or Wisconsin Alliance for Retired Americans.

RELATED PROCEEDINGS

The related proceedings below are:

1. *Democratic National Committee, et al. v. Bostelmann, et al.*, Nos. 20-2835 & 20-2844 (7th Cir.) – Order entered October 8, 2020;
2. *Democratic National Committee, et al. v. Bostelmann, et al.*, No. 2020AP1634-CQ (Wis.) – Order entered October 6, 2020;
3. *Gear, et al. v. Dean Knudson, et al.*, No. 3:20-cv-278 (W.D. Wis.) – Order entered September 21, 2020;
4. *Edwards et al. v. Vos et al.*, No. 3:20-cv-340 (W.D. Wis.) – Order entered September 21, 2020; and
5. *Swenson v. Bostelmann*, No. 3:20-cv-459 (W.D. Wis.) – Order entered September 21, 2020

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**EMERGENCY APPLICATION TO VACATE THE SEVENTH CIRCUIT'S
STAY OF THE ORDER ISSUED BY THE UNITED STATES DISTRICT
COURT FOR THE WESTERN DISTRICT OF WISCONSIN**

TO: The Honorable Brett M. Kavanaugh, Circuit Justice for the Seventh Circuit:

Pursuant to Rules 22 and 23 of the Rules of this Court, Plaintiffs-Applicants Sylvia Gear, Claire Whelan, Katherine Kohlbeck, Diane Fergot, Gary Fergot, Bonibet Bahr Olsan, Sheila Jozwik, Gregg Jozwik, League of Women Voters of Wisconsin, and Wisconsin Alliance for Retired Americans, Plaintiffs-Appellees in the courts below, respectfully apply for an order vacating the stay issued on October 8, 2020, by a panel of the United States Court of Appeals for the Seventh Circuit, a copy of which is appended to this application. App. 1–32. *Democratic Nat’l Comm., et al. v. Bostelmann, et al.*, No. 20-2835, 2020 WL 5951359 (7th Cir. Oct. 8, 2020). Plaintiffs-Appellees opposed the Wisconsin Legislature’s stay motion. App. 130–49. The Seventh Circuit’s order stayed the preliminary injunction that was issued on September 21, 2020, App. 33–101, *Democratic Nat’l Comm. et al. v. Bostelmann, et al.*, 20-cv-249-wmc, 20-cv-278-wmc, 20-cv-340-wmc, & 20-cv-459-wmc 2020 WL 5627186 (W.D. Wis. Sept. 21, 2020); *see also* App. 102–04.¹

¹ Four cases were consolidated in these proceedings, and the *Gear* Plaintiffs were the sole litigants to seek this part of the preliminary injunction. This Application only addresses the limited electronic delivery fail-safe. Any district court docket references are to the lead docket, 20-cv-249 (W.D. Wis.), unless otherwise noted.

INTRODUCTION

Thousands of Wisconsin voters lost their right to vote in the April 7 election. Among them were five of the Plaintiffs-Applicants in *Gear v. Bostelmann* (“*Gear* Plaintiffs”), who requested but never received their absentee ballots in the mail and could not safely vote in person due to the COVID-19 pandemic. To prevent their disenfranchisement in Wisconsin’s spring election from recurring in the fall general election, in early July, four months before the November election, they sought a preliminary injunction requiring the Wisconsin Elections Commission (“WEC” or “the Commission”) to offer electronic delivery of replacement mail-in absentee ballots as a fail-safe for themselves and other voters who do not receive their timely-requested ballots in the mail. *See* dkt. 421; App. 84–86. The district court found that “the evidence [was] nearly overwhelming that the pandemic *does* present a unique need for relief in light of: (1) the experience during the Spring election, (2) much greater projected numbers of absentee ballot requests and votes in November, and (3) ongoing concerns about the USPS’s ability to process the delivery of absentee ballot applications and ballots timely.” App. 85 (emphasis in original). Accordingly, it granted the *Gear* Plaintiffs the limited relief they sought. App. 86, 100. The U.S. Court of Appeals for the Seventh Circuit stayed the injunction. App. 6.

The Seventh Circuit committed demonstrable legal and factual errors and abused its discretion in staying the order providing for electronic delivery of replacement ballots. The history of the litigation over this particular Wisconsin law puts this case on very different footing from every other election law case that has

reached this Court this year. That history demonstrates that the Seventh Circuit, in this instance, demonstrably erred in applying *Purcell v. Gonzalez*, 549 U.S. 1 (2006), in an arbitrary manner.

First, the Seventh Circuit's admonition that to be timely under *Purcell* the district court's injunction should have been issued in May is irrational with respect to the *Gear* case. In May, before the Seventh Circuit's June 29 decision in *Luft v. Evers*, 963 F.3d 665 (7th Cir. 2020), electronic delivery of ballots was available to all Wisconsin voters, including the *Gear* Plaintiffs. Consequently, an injunction to secure electronic delivery of ballots would have been unripe in May, and there would have been no rational reason for the *Gear* Plaintiffs to seek one, or for the district court to order one, at that time. Once the need arose on June 29 for the *Gear* Plaintiffs to seek an injunction requiring electronic ballot delivery because the Seventh Circuit's *Luft* decision eliminated their right to it, the *Gear* Plaintiffs moved for a preliminary injunction within nine days. The *Gear* Plaintiffs have not been dilatory in the slightest, having sought the injunctive relief now stayed by the Seventh Circuit neither prematurely nor too late. Perhaps the most charitable reading of the panel majority's opinion is that it failed to consider the distinct claims and remedies in the *Gear* case. On that ground alone, the stay should be vacated for demonstrable error.

Second, the Seventh Circuit's rationale is plainly irreconcilable with the same court's *denial* of a stay in August 2016 in *One Wisconsin Institute v. Thomsen*, 198 F. Supp. 3d 896, 946 (W.D. Wis. 2016), *and aff'd in part, vacated in part, rev'd in*

part sub nom. Luft v. Evers, 963 F.3d 665 (7th Cir. 2020). That case resulted in a judgment that included a *far broader* extension of electronic delivery of absentee ballots than the district court has ordered here, among a multitude of other election law changes. The stay is also wholly at odds with the Seventh Circuit’s decision to issue its opinion and mandate in *Luft v. Evers*, 963 F.3d 665, 676–77 (7th Cir. 2020), this summer, well after May, when that court held the district court’s injunction here should have issued to be timely. The Seventh Circuit ultimately reversed the unstayed injunction in the middle of this year’s August 11 primary election (the mandate issued while early in-person voting was ongoing) and mere weeks before the mailing of absentee ballots began for the November general election. No legal principle or fact can harmonize these divergent outcomes. As such, the Seventh Circuit demonstrably erred and abused its discretion in applying *Purcell* in a wholly arbitrary manner.

Third, the Seventh Circuit demonstrably erred by failing to consider the specific considerations outlined in *Purcell*, failing to differentiate among the numerous voting claims and remedies at issue in these consolidated proceedings, failing to consider record evidence, and disregarding the district court’s factual findings. These errors resulted in a stay decision that fundamentally subverts the objectives and interests identified in *Purcell*. The alternative-ballot-delivery option the district court ordered will not confuse election officials or voters, at least some of whom have already come to expect and rely upon email delivery of mail-in ballots over the course of many years, until approximately 76 days ago. Many voters were

already led to believe that they would be able to use this method in the 2020 election cycle; therefore, if anything, the Seventh Circuit’s ruling switching this option off in late July will confuse voters who had planned to request electronic delivery. Moreover, this exceedingly narrow relief will serve to ensure that only the most vulnerable voters who risk being “thwarted through no fault of their own” can cast their ballots. App. 85. It will not deter, but facilitate, voter participation. Finally, election officials and their staff are deeply experienced with this ballot delivery method and know it well, having used it over the last twenty years. For all these reasons, the Seventh Circuit has deviated from and undermined this Court’s statement of the law as set forth in *Purcell*.

In the absence of guidance from this Court that differentiates among specific election law changes and ensures more uniform treatment across voting cases, there is no *Purcell* principle or even a set of *Purcell* considerations, just the exercise of unfettered whim under the aegis of *Purcell*.² Respectfully, this Court should vacate the stay.

² App. 10 (Rovner, J., dissenting) (“[T]he Supreme Court’s pattern of staying similar sorts of injunctions in recent months is long on signaling but short on concrete principles that lower courts can apply to the specific facts before them.”); *id.* at 9 (“Perhaps we can say at this point that *Purcell* and its progeny establish a presumption against judicial intervention close in time to an election. . . . But how near? As to what types of changes? Overcome by what showing? These and other questions remain unanswered.”).

STATEMENT OF THE CASE

I. Email delivery of mail-in absentee ballots has been an option for some or all absentee voters in Wisconsin for two decades.

For the last twenty years, Wisconsin law has permitted some or all voters to receive an absentee ballot by email. Wis. Stat. §§ 6.87(3)(a), 6.87(3)(d). Voters print and mark these ballots by hand and then return them to their municipal clerks by mail or by dropping them off in person. Wis. Stat. §§ 6.87(3)(d), 6.87(4).

The original statute authorizing electronic transmission of ballots was created by 1999 Wis. Act 182, § 97 (May 24, 2000), took effect in 2000, and permitted any voter—domestic civilian, military, or overseas—to request and receive a mail-in absentee ballot by email:

Unless a municipality uses an electronic voting system that requires an elector to punch a ballot in order to record the elector's votes, a municipal clerk of a municipality may, if the clerk is reliably informed by an absent elector of a facsimile transmission number or electronic mail address where the elector can receive an absentee ballot, transmit a facsimile or electronic copy of the absent electors ballot to that elector in lieu of mailing under this subsection *if, in the judgment of the clerk, the time required to send the ballot through the mail may not be sufficient to enable return of the ballot by the time provided under sub. (6).*

Wis. Stat. § 6.87(3)(d) (2000) (emphasis added), *amended by* 2001 Exec. Budget Act, § 9415, 2001-2002 Wis. Legis. Serv. Act 16 (2001 S.B. 55) (eliminating punch card electronic voting systems). For the first decade of this statute's life span, clerks were given discretion to decide whether email delivery was necessary to ensure timely receipt. In 2011, the Wisconsin Legislature mandated that clerks provide such alternative ballot delivery methods. Wis. Stat. § 6.87(3)(d) (June 10, 2011) ("A

municipal clerk *shall*, if the clerk is reliably informed by an absent elector of a facsimile transmission number or electronic mail address where the elector can receive an absentee ballot, transmit a facsimile or electronic copy of the absent elector's ballot to that elector in lieu of mailing under this subsection.”) (emphasis added).

Six months later, the Wisconsin Legislature enacted 2011 Wis. Act 75, § 50 (Dec. 1, 2011), mandating that municipal clerks “transmit a facsimile or electronic copy of the elector’s ballot to that elector in lieu of mailing” only to military and overseas voters who request delivery by this means. Wis. Stat. § 6.87(3)(d) (“An elector may receive an absentee ballot only if *the elector is a military elector or an overseas elector under s. 6.34(1)* and has filed a valid application for the ballot under as provided in s. 6.86(1).”) (emphasis added). Now the statute permits only military electors, as defined in Wis. Stat. § 6.34(1)(a), and overseas electors, as defined in Wis. Stat. § 6.34(1)(b), to request that their municipal clerk deliver their absentee ballot electronically instead of by mail.

II. The district court’s 2016 ruling in *One Wisconsin Institute* struck down Act 75’s ban on electronic delivery of absentee ballots to domestic civilian voters.

Four years after it was enacted, Act 75’s ban on emailing mail-in absentee ballots to domestic civilian voters was struck down by the district court’s decision in *One Wisconsin Institute v. Thomsen*, 198 F. Supp. 3d 896, 946 (W.D. Wis. 2016), *order enforced*, 351 F. Supp. 3d 1160 (W.D. Wis. 2019), *and aff’d in part, vacated in part, rev’d in part sub nom. Luft v. Evers*, 963 F.3d 665 (7th Cir. 2020). Wisconsin

voters can request replacement mail-in absentee ballots by email or fax if they spoil or fail to receive a ballot up until the ballot-request deadline. *See* dkt. 423-23, Wisconsin Elections Commission, Uniform Instructions for Absentee Voting, at 2 (“A voter may request that a replacement ballot be faxed or emailed to him or her.”); Wis. Stat. § 6.80(2)(c); Wis. Stat. § 6.86(5).

On August 22, 2016, just one month before municipal clerks began mailing out absentee ballots for the 2016 presidential election, the Seventh Circuit denied a motion to stay that permanent injunction. App. 155–75. The court also denied a petition for initial en banc review. App. 176–79. In addition to extending electronic delivery of mail-in absentee ballots, the judgment included a multitude of other changes to Wisconsin election laws. *One Wisconsin Inst.*, 198 F. Supp. 3d at 964–65; App. 150–52.³ The November 2016 election proceeded under this injunction. A significant number of voters requested electronic delivery of their ballots in the 2016 presidential election: 9,619 mail-in absentee ballots were delivered by email to voters. *See* dkt. 423-3. That comprised more than 5 percent of the 178,996 mail-in absentee ballots delivered to absentee voters statewide. *Id.* 7,231 of these 9,619 email-delivered ballots were ultimately returned by mail, *id.*—“without incident,” as the district court found, App. 86, or dispute.

³ The declaratory judgment alone contained ten specific subparts.

III. The Seventh Circuit’s decision this summer in *Luft v. Evers* reinstated the statutory ban on electronic delivery of absentee ballots to domestic civilian voters.

In February 2017, the Seventh Circuit heard oral argument in the appeal from the *One Wisconsin Institute* injunction. The case remained undecided for approximately three-and-a-half years, until June 29 of this year, when the Seventh Circuit reversed the district court’s ruling, reinstating the statutory restriction on electronic ballot delivery. *Luft v. Evers*, 963 F.3d 665, 676–77 (7th Cir. 2020).⁴ The mandate issued on July 29, 2020, just seven weeks before clerks, by law, started mailing out absentee ballots for the November 2020 election. Wis. Stat. § 7.15(cm). Indeed, the 27-page decision was handed down in the middle of Wisconsin’s August 11 primary election—after the first wave of absentee ballots had been mailed out—with no stay and no instruction as to how its reversals of the status quo should be applied when the mandate issued just thirteen days before Election Day. Consequently, the pre-*One Wisconsin Institute* reach of Section 6.87(3)(d), permitting only overseas and military voters to use these alternative absentee ballot delivery methods, snapped back into place.

The *One Wisconsin Institute* injunction reversed in *Luft v. Evers* long predated the COVID-19 pandemic. The record on which that injunction was entered contained no epidemiological or other evidence relating to the danger that this pandemic poses for voters or how long that danger may persist. The record here, on which Judge Conley acted, has ample evidence on these issues. Unlike this case,

⁴ *Luft* was consolidated with *One Wisconsin Institute*, so the decision was issued under both captions but *Luft* was listed first.

One Wisconsin Institute was largely premised on the alleged discriminatory treatment of regular domestic civilian voters, on the one hand, and overseas and military voters, on the other. 198 F. Supp. 3d at 946.

IV. The district court’s preliminary injunction in *Gear* enjoined the ban on a limited basis from October 22 through 29 for voters who have applied for but not received their mail-in absentee ballots.

In light of the COVID-19 pandemic, the *Gear* Plaintiffs amended their complaint in late June to plead an *Anderson-Burdick* claim and seek a fail-safe alternative for voters who do not receive their timely-requested absentee ballot in the mail. *See* dkt. 165 at 65–79. Pursuant to a scheduling order agreed to by all parties, the *Gear* Plaintiffs moved for a preliminary injunction on July 8, twenty-one days before the mandate in *Luft* issued, and the district conducted an all-day evidentiary hearing on August 5. On September 21, the district court issued its opinion and order preliminarily enjoining the ban instated by 2011 Wisconsin Act 75 and reinstated by *Luft*, 963 F.3d at 676–77. *See* dkt. 538 at 52–54, 68; dkt. 539 at 3. The injunction temporarily permits municipal clerks to issue replacement ballots via email to regular civilian voters residing in Wisconsin who properly request absentee ballots but do not receive their ballots by mail. This fail-safe option can be exercised only during the eight-day period from October 22 through October 29. App. 104. This decision was based on the high percentage of registered voters who have requested absentee ballots for the November 3 election, taking into account the impact of the COVID-19 pandemic, which has reasonably prompted an unprecedented number of voters to avoid voting in person and prompted the WEC

itself to send absentee ballot applications to all registered Wisconsin voters. *See* dkt. 423-17; dkt. 423-18. The district court decision also creates a fail-safe in an instance when USPS is unable to deliver ballots to registered voters in a timely manner, such that they may be returned to the municipal clerk or postmarked by November 3.

STANDARD OF REVIEW

Federal courts consider four factors in deciding whether to enter a stay of a district court's injunction: "(1) whether the stay applicant has made a strong showing that he is likely to succeed on the merits; (2) whether the applicant will be irreparably injured absent a stay; (3) whether issuance of the stay will substantially injure the other parties interested in the proceeding; and (4) where the public interest lies." *Nken v. Holder*, 556 U.S. 418, 426 (2009) (citation and quotation marks omitted).

There is no controlling precedent on the standard of review for applications to vacate stays entered by the U.S. Courts of Appeals. In one in-chambers opinion, Justice Marshall reviewed a stay entered by the U.S. Court of Appeals for the Second Circuit for abuse of discretion. *Holtzman v. Schlesinger*, 414 U.S. 1304, 1315 (1973) (Marshall, J., in chambers). Two subsequent in-chambers opinions instruct that the Court may vacate an appellate court stay where (1) the case "could and very likely would be reviewed here upon final disposition in the court of appeals," (2) "the rights of the parties . . . may be seriously and irreparably injured by the stay," and (3) "the court of appeals is demonstrably wrong in its application of

accepted standards in deciding to issue the stay.” *Coleman v. Paccar, Inc.*, 424 U.S. 1301, 1304 (1976) (Rehnquist, J., in chambers); *see also W. Airlines, Inc. v. Int’l Bhd. of Teamsters*, 480 U.S. 1301, 1305 (1987) (O’Connor, J., in chambers). Finally, most recently, in a concurring opinion, Justice Scalia, joined by Justices Thomas and Alito, focused on the last of those three factors and stated that this Court may vacate a stay if the court below “demonstrably erred in its application of accepted standards.” *Planned Parenthood of Greater Tx. Surgical Health Servs. v. Abbot*, 571 U.S. 1061 (2013) (Scalia, J., concurring) (quotations omitted).

Under any of these standards, the stay here should be vacated for demonstrable error and abuse of discretion. “The question is simply whether there has been an abuse of discretion and is to be determined in accordance with familiar principles governing the exercise of judicial discretion. That exercise implies conscientious judgment, not arbitrary action.” *Burns v. United States*, 287 U.S. 216, 222–23 (1932). Under Seventh Circuit precedent, a court “abuses its discretion when (1) the record contains no evidence upon which the court could have rationally based its decision; (2) the decision is based on an erroneous conclusion of law; (3) the decision is based on clearly erroneous factual findings; or (4) the decision clearly appears arbitrary.” *Walker v. Price*, 900 F.3d 933, 938 (7th Cir. 2018) (citation and quotation marks omitted). This is that rare case where these deferential standards have been breached. The Seventh Circuit has demonstrably erred and abused its discretion because its opinion granting the stay: (1) fails to consider the distinct legal claims and remedies raised in *Gear* that would have made moving for an

injunction in May completely futile; (2) departs arbitrarily from the court's recent prior rulings in related litigation; (3) stands upon clearly erroneous factual representations that contradict the record and the district court's findings; and (4) erroneously applies *Purcell v. Gonzalez*, 549 U.S. 1 (2006).

ARGUMENT

I. The Seventh Circuit has demonstrably erred in its application of *Purcell* and applied the precedent arbitrarily, thereby abusing its discretion.

As a threshold matter, the Seventh Circuit neither articulated how it was applying the concerns or factors identified by this Court in *Purcell* nor applied the four equitable *Nken* factors for issuance of a stay. 556 U.S. at 426. Instead, invoking a reductive version of *Purcell* and not the inquiry this Court actually prescribed, the panel majority simply stated that “[i]f the judge had issued an order in May based on April’s experience, it could not be called untimely. By waiting until September, however, the district court acted too close to the election.” App. 4.

First, the Seventh Circuit’s admonition that to be timely under *Purcell* the district court’s injunction should have been issued in May implicitly criticizes the district court and the *Gear* Plaintiffs for failing to do the illogical and unnecessary. In May and at all other times until the Seventh Circuit’s June 29 decision in *Luft*, electronic delivery of ballots was available to all Wisconsin voters, not just to military and overseas voters. The *Gear* Plaintiffs moved for a preliminary injunction a mere nine days after the Seventh Circuit issued its decision in *Luft*, withdrawing email delivery as an option for domestic civilian voters, and, notably, twenty-one

days before the mandate in *Luft* issued on July 29. App. 180–82. They could not have so moved prior to *Luft* but wasted no time in taking action once this gap in protection for voters emerged. Yet the Seventh Circuit stayed the relief here as not timely sought. On this ground alone, the stay should be vacated for demonstrable error.

Second, the Court’s rationale is fundamentally inconsistent and irreconcilable with the Seventh Circuit’s previous *denial* of a stay in *One Wisconsin Institute* in August 2016 and its decision to issue its opinion and mandate in that case mere weeks before the mailing of absentee ballots began this year. Setting a de facto “May deadline for any changes to election rules,” App. 12 (Rovner, J., dissenting), is irreconcilable with the Seventh Circuit’s actions in *One Wisconsin Institute* in 2016 and the decision in *Luft* that reversed the *One Wisconsin Institute* judgment in relevant part. The Seventh Circuit has demonstrably erred and abused its discretion in applying *Purcell* in such a manifestly arbitrary manner.

Following the decision in *One Wisconsin Institute v. Thomsen*, which enjoined the statutory restriction on electronic transmission of ballots to military and overseas voters and ordered a multitude of other changes to Wisconsin election laws, 198 F. Supp. 3d at 946, 964–65, App. 150–52, WEC filed its notice of appeal on August 2, 2016. App. 153–54. On August 22, 2016, the Seventh Circuit *denied* a motion to stay that permanent injunction. App. 155–75. This occurred one month before municipal clerks began to mail out absentee ballots for the 2016 presidential election. For the ensuing nearly four years while the case remained on appeal,

Wisconsin voters requested mail-in absentee ballots by email delivery and returned them by mail.

The Seventh Circuit panel could have left the state of Wisconsin's election law undisturbed, given the length of time the case had been pending and the upcoming elections, but it decided to issue its opinion in late June—with the mandate following in late July, just seven weeks before clerks, by law, started mailing out ballots for the 2020 presidential election. Wis. Stat. § 7.15(cm). Indeed, the 27-page decision was handed down in the very middle of the August 11, 2020 primary election in Wisconsin—after many ballots had been mailed out pursuant to the deadlines under federal and state statutes—and the mandate issued in late July, during the early in-person voting period. The Seventh Circuit did not stay its ruling or provide any instruction as to how its various reversals of the status quo should be applied in the midst of an ongoing election. That abrupt ruling disturbed the status quo that had been in place over nearly four years and many elections in which email delivery of mail-in absentee ballots was available to *all* Wisconsin voters, making it reasonable for them to expect that this alternative ballot delivery method would once again be available in the August primary and in the November general election.

The *Gear* Plaintiffs sought to reinstate this alternative delivery option, but only as a time-limited fail-safe for a narrow set of voters who diligently request their ballots well in advance of an election but do not receive them in the mail in time to timely return them under the default statutory deadline of 8:00 p.m. on

Election Day. Many such absentee voters cannot safely vote in person at a polling place due to an underlying condition or disease that puts them at severe risk of suffering complications or dying from COVID-19. For these voters, as the district court found, the confluence of a deadly pandemic marked by aerosolized and widespread transmission in Wisconsin, a sclerotic U.S. Postal Service (“USPS”), and overwhelmed municipal clerks’ offices spells certain disenfranchisement absent a fail-safe alternative. App. 85–86. The record is “replete” with declarations from would-be voters in the April 7 election who did not receive their ballot in time or even after Election Day, even though they all applied multiple weeks in advance. App. 84–85. Absent the district court order granting this relief as a back-up option to receive a *replacement* ballot by email within an eight-day period later this month, as in April, Wisconsin voters will again lose their right to vote.

But this much more limited extension of electronic delivery has met a different fate on appeal in 2020. Four years ago, the Seventh Circuit rejected *Purcell* arguments to *deny* a stay of an injunction that expanded email delivery to *all* voters in August 2016. That relief was of course not limited to a specific time period or subset of voters; nor was it issued because of the exigent circumstances of a pandemic. But now, during a pandemic that threatens election administration and voter participation alike, the Court has invoked *Purcell* to *grant* a stay of an exceedingly limited, targeted extension of the *same* relief for a narrow subset of voters that was issued at approximately the *same* time relative to a federal general election. And it has done so by suggesting that to be timely under *Purcell*, a district

court must act six months before an election. This rationale and requirement find no support in this Court's or any other court's precedents. Such a requirement would directly conflict with: (1) the Seventh Circuit's 2016 ruling denying the stay motion in *One Wisconsin Institute*; (2) the Seventh Circuit's June 29, 2020 ruling in *Luft* after nearly three and a half years under submission, with the mandate issuing on July 29, mere weeks before the first wave of absentee ballot mailings or the November election and well after the court's May deadline; and (3) this Court's precedent.

Given the Seventh Circuit's substantively irreconcilable prior rulings in *One Wisconsin Institute* and *Luft* and the *timing* of those rulings, the court has demonstrably erred and abused its discretion in applying *Purcell* to this litigation over the email delivery of absentee ballots in Wisconsin.

II. The Seventh Circuit demonstrably erred by misapplying *Purcell*, clearly erred in applying the facts, and disregarded the district court's factual findings which were owed deference.

In addition to the patently inconsistent and arbitrary manner in which the Seventh Circuit has ruled on stay motions concerning this particular Wisconsin election law, the court also misapplied the considerations outlined in *Purcell* in this case. Given the stay order's complete silence on these considerations, one can only speculate that the court either did not weigh them at all or believed they favored granting the Wisconsin Legislature's stay motion. However, each *Purcell* factor favors preserving this vital fail-safe remedy for the November election.

In *Purcell*, this Court directed the lower courts to weigh “considerations specific to election cases”—namely the risks of confusing voters, unduly increasing administrative burdens, and disincentivizing voter turnout—amongst the standard equitable factors for issuance of an injunction. 549 U.S. at 4–5. Courts are “required to weigh” these election-specific considerations “*in addition to* the harms attendant upon issuance or nonissuance of an injunction,” not instead of them. *Id.* at 4 (emphasis added). *Purcell* and its progeny stand for the proposition that finality in election law disputes is desirable, not for its own sake, but because it prevents voter and administrator confusion, avoids deterring voter participation, and minimizes the risk of imposing significant costs and burdens on administrators. However, a federal court order that does not incur these risks should not be stayed only because it constitutes a change to the status quo.

The Seventh Circuit’s treatment of *Purcell*, however, embraces finality for finality’s sake, while disregarding this Court’s reasoning. In this case and others, *Purcell* has become disconnected from its animating concerns; through repeated summarization, the precedent has lost its original meaning. A blunt, reductive version has emerged in its place, resulting in an analysis of election law litigation and remedies that fails to actually assess whether a court has effectuated or undermined the animating interests and objectives *Purcell* identified.

a. The risks of voter confusion and disincentivizing voter turnout do not apply here and provide no support for the Seventh Circuit’s stay.

It is plain that *Purcell*’s clear, overriding commitment is to minimizing voter confusion and thereby maximizing voter participation. This Court wrote that: “Court orders affecting elections, especially conflicting orders, can themselves result in voter confusion and consequent incentive to remain away from the polls. As an election draws closer, that risk will increase.” *Purcell*, 549 U.S. at 4–5. This means *Purcell* should not act as a bar to injunctive relief when voters’ rights would be vindicated and disenfranchisement and voter confusion prevented by the relief ordered, as in this case. *See Frank v. Walker*, 574 U.S. 929 (2014) (vacating stay of injunction against implementation of voter ID requirement to avoid voter confusion and disenfranchisement); *id.* at 929 (Alito, J., dissenting) (acknowledging that “absentee ballots ha[d] been sent out without any notation that proof of photo identification must be submitted”).

In this case, the district court’s preliminary injunction creates a fail-safe option for voters who do not receive a ballot in the mail. App. 104 (authorizing replacement ballot delivery by email or online access “for domestic civilian voters . . . for the period from October 22 to October 29, 2020, provided that those voters who timely requested an absentee ballot, the request was approved, and the ballot was mailed, but the voter did not receive the ballot”). This will enable, not deter, voter participation and turnout.

The district court found that the record across all four cases was “replete” with examples of voters not receiving their ballots on time or at all, even if they had applied well in advance of the election. App. 84–85. The Seventh Circuit owed deference to this factual finding. *See Purcell*, 549 U.S. at 5 (reversing in part because U.S. Court of Appeals’ decision failed to “give deference” to the “factual findings” of the district court). Instead, the panel majority ignored the district court’s factual findings, relying upon a clearly erroneous interpretation of the record. This caused the court to deviate from *Purcell*.

The district court’s limited remedy adhered to *Purcell*’s interests in minimizing confusion and maximizing voter participation by granting an exceedingly narrow remedy to ensure that diligent, but vulnerable, voters could still cast their absentee ballots:

[T]he relief requested is narrowly tailored only to those voters who timely fulfilled all of the necessary steps to vote by mail, but were thwarted through no fault of their own. Indeed, this is exactly the “1% problem” that the Seventh Circuit indicated requires a safety net in both *Luft* and *Frank II*.

App. 85. But the Seventh Circuit mistakenly focused only on voters who apply for absentee ballots at the “last minute,” App. 5, not voters like the *Gear* Plaintiffs who apply weeks or more in advance. In Plaintiffs’ case, they apply timely *precisely because* they are at higher risk from COVID-19 and cannot vote safely in person. In applying *Purcell* to these consolidated *but distinct* cases, the Seventh Circuit appears to have conflated the various claims and overlooked the specific category of

voters the *Gear* case and the corresponding part of the preliminary injunction sought to protect. The panel majority writes:

The district court did not find that any person who wants to avoid voting in person on Election Day would be unable to cast a ballot in Wisconsin by planning ahead and taking advantage of the opportunities allowed by state law. The problem that concerned the district judge, rather, was the difficulty that could be encountered by voters who do not plan ahead and wait until the last day that state law allows for certain steps. Yet, as the Supreme Court observed last April in this very case, voters who wait until the last minute face problems with or without a pandemic.

App. 5. This passage shows that the Court demonstrably erred by either disregarding or failing to consider the *Gear* Plaintiffs' facts or the district court's analysis as to the email delivery fail-safe.

During the April 7 election, the *Gear* Plaintiffs applied for their mail-in absentee ballots weeks in advance of Election Day, but their ballots did not arrive in the mail. *See* dkt. 372, Declaration of Katherine Kohlbeck ("Kohlbeck Decl.") ¶¶ 5, 9; dkt. 375, Declaration of Bonibet Bahr Olsan ("Bahr Olsan Decl.") ¶ 6; dkt. 376, Declaration of Sheila Jozwik ("Sheila Jozwik Decl.") ¶ 4 (requested ballot three weeks in advance); dkt. 377, Declaration of Gregg Jozwik ("Gregg Jozwik Decl.") ¶ 4 (same); dkt. 374, Declaration of Gary Fergot ("Gary Fergot Decl.") ¶¶ 5, 7 (requested ballot two weeks before Election Day); dkt. 373, Declaration of Diane Fergot ("Diane Fergot Decl.") ¶¶ 5, 7 (same). Five of them ultimately could not vote as a result of these ballot processing and delivery failures and their vulnerability to COVID-19 due to underlying diseases, medical conditions, and/or age. *See* dkt. 372, Kohlbeck Decl. ¶ 9; dkt. 375, Bahr Olsan Decl. ¶ 8; dkt. 376, Sheila Jozwik Decl. ¶ 8; dkt. 374,

Gary Fergot Decl. ¶ 7; dkt. 373, Diane Fergot Decl. ¶ 7. Currently, a civilian voter can only request that a *replacement* ballot be sent by mail, but this is an exercise in futility considering USPS failed to deliver the originally-requested ballot. During the April 7 election, several Plaintiffs in fact tried to request that a replacement mail-in absentee ballot be sent by mail, but those second requested ballots also failed to arrive in time. *See* dkt. 372, Kohlbeck Decl. ¶¶ 7–9; dkt. 373, Diane Fergot Decl. ¶¶ 5–7; dkt. 373, Gary Fergot Decl. ¶¶ 5–7. Numerous additional declarants met the same fate; indeed, the district court found that the record was “replete” with examples of voters not receiving their ballots on time or at all. App. 84–85. Because the Seventh Circuit failed to acknowledge and consider this crucial record evidence, it has entered a stay seemingly on the assumption that the court is only denying relief to voters who wait until the “last minute” to apply for a mail-in ballot. This was clearly and demonstrably erroneous.

The Seventh Circuit also failed to apply *Purcell* according to its express terms. In misapplying this Court’s precedent, it again demonstrably erred and abused its discretion. Per the district court’s order, this relief will take effect in less than two weeks on October 22, about a month after the injunction was issued. App. 104. If this were a case in which a federal court had ordered a change in voting rules and procedures that impose some obligation on voters and with which Wisconsin voters had zero or little prior experience, those considerations might weigh in favor of staying the injunction on *Purcell* grounds. There might be other countervailing factors that outweigh those considerations, but that factor, at least,

would counsel in favor of delaying the injunction's implementation. But this case is different for two reasons.

First, because the extension of electronic ballot delivery to all voters is an obligation imposed upon election officials, not voters, this is not a change in the law that is susceptible to causing voter confusion. As Judge Rovner noted, “[o]nly two of the five modifications that Judge Conley ordered alter what is expected of voters,” and the email delivery fail-safe is not one of them. App. 10 (Rovner, J., dissenting). Indeed, “[t]he other three changes are directed to election officials and what they must do. By their nature, these changes will not impact voter decisions.” *Id.* at 11.

Second, the relief sought has been utilized in Wisconsin for two decades. And for the last four years following *One Wisconsin Institute* (less about 77 days), regular civilian voters, not just military and overseas voters, have been permitted to request their ballots be delivered by email. Since email delivery has long been available in Wisconsin, there is no such risk of voter confusion from the district court's ordering that this option be provided once again on a limited basis as a fail-safe for voters who request but do not receive their ballot in the mail. This is a last resort, not a first choice. In order to qualify for this relief, the voter must have previously applied for an absentee ballot to be delivered by mail. App. 86. Accordingly, most voters will never need to learn of this fail-safe. A voter will only learn of their options for replacement ballot delivery if their ballot does not arrive in the mail and they contact their clerk's office to ask about their options. Because most voters will never learn of this back-up option, it cannot confuse them or deter

them from voting. Regardless of whether voters know of this fail-safe before they have a problem, it is crucial that this fail-safe be in place when overwhelmed municipal clerks and USPS facilities cannot keep up with the demand, as in the April 7 election, which saw half the total turnout anticipated for this election. Moreover, since this alternative delivery option can only *safeguard* the rights of voters who never received their ballot in the mail, this fail-safe does not undermine *Purcell's* express concerns with minimizing voter confusion or doing no harm to voter turnout. Rather, it advances those objectives. Voters would be far more confused and alienated from the electoral process if their timely-requested ballot did not arrive in the mail, a replacement ballot also stalled, and no recourse was available.

Voters' preexisting familiarity with email delivery will of course vary. Some will have used this method, but most will not. And only the last two and half months have seen the availability of electronic transmission alternatives retracted in part. That development, the result of the Seventh Circuit's decision in *Luft*, will never reach most lay voters' attention, the overwhelming majority of whom, of course, do not follow federal constitutional litigation or the technicalities of election administration. If anything, voters who have previously requested email delivery will be confused to learn that *Luft* has withdrawn this ballot delivery option, especially since it was available for the last four years and earlier this year during the April 7 Wisconsin Supreme Court and primary elections.

Recent Kenosha City Clerk Treasurer Debra Salas entered a declaration in this matter, noting that voters in her city have come to rely on email delivery:

Despite the Seventh Circuit’s recent decision, once again restricting email delivery of absentee ballots to military and overseas voters, it is anticipated that many domestic civilian voters will request email delivery of absentee ballots for the November general election. For some domestic civilian voters, particularly those that are temporarily away, or in counties with unreliable mail delivery, receiving a ballot via email was the only way to guarantee the voter would have an adequate amount of time to send their ballot back to the City Clerk’s Office.

See dkt. 384, Declaration of Debra Salas (“Salas Decl.”) ¶ 10. To be clear, Plaintiffs are not contesting the merits of *Luft* here. Instead, Plaintiffs take issue with the Seventh Circuit’s decision to upset Wisconsin’s electoral status quo in late July, just seven weeks before the first mailing of absentee ballots and, in light of that decision’s timing, that court’s inconsistent imposition of a stay in this action. Further, the Seventh Circuit could have stayed the *One Wisconsin Institute* injunction during that appeal’s nearly four-year pendency after oral argument but declined to do so. In that time, some portion of Wisconsin voters became well-accustomed to email delivery as an option. Indeed, this option has been listed on Form EL-121, the State’s absentee ballot application, for four years⁵ and was used by nearly ten thousand voters in the last presidential election and thousands in the April 7 election. See dkt. 423-20; dkt. 423-3; dkt. 382, Declaration of Maribeth Witzel-Behl (“Witzel-Behl Decl.”) ¶¶ 7–8 (Madison City Clerk noting her office

⁵ The pre-*Luft* version included email delivery as an option without restriction. See dkt. 423-20.

“delivered 2,225 mail-in absentee ballots by email upon voters’ requests” for April 7 election and at least “821 mail-in absentee ballots” for August 11 primary).

There is no factual or legal basis to conclude that Wisconsin voters will be confused or deterred from participating in the election due to the limited fail-safe for ballot delivery failures that the district court ordered.

b. The risk of increasing administrative burdens and costs is similarly inapposite here.

Furthermore, there is no risk of election administrator confusion because municipal clerks and their staff have used and been trained on email delivery of mail-in absentee ballots for two decades. WEC’s staff has also become more adept at implementing legal changes quickly and effectively. In April, the district court, the Seventh Circuit, and this Court issued rulings mere days before the April 7 primary election. *See Democratic Nat’l Comm. v. Bostelmann*, No. 20-cv-249, 2020 WL 1638374 (W.D. Wis. Apr. 2, 2020), *stayed in part by Democratic Nat’l Comm. v. Republican Nat’l Comm.*, No. 20-1538, 2020 WL 3619499 (7th Cir. Apr. 3, 2020), *stayed in part*, 140 S. Ct. 1205 (2020). WEC has continually and successfully issued new guidance, developed new policies, and updated its websites and materials throughout the COVID-19 pandemic, trying to prepare for the November general election. In the run-up to the April 7 election, WEC successfully issued over fifty communications and guidance documents to clerks to keep pace with the unprecedented and rapidly-evolving pandemic. *See* dkt. 446, Declaration of Meagan Wolfe ¶ 23. Such extensive and ever-evolving administrative responses to the pandemic ultimately proved manageable for WEC. The same will hold true here,

where the preliminary injunction offers voters a tested and proven alternative that municipal clerks have used—without incident or dispute—for the last four years (less 77 days) and with which many voters are already familiar. The district court’s remedy ensures that a ballot can be timely delivered, and it ensures that the success of the replacement ballot’s delivery need not turn on USPS’s efficacy.

This Court has rejected arguments that increased administrative burdens and costs override First Amendment rights. *See Tashjian v. Republican Party of Connecticut*, 479 U.S. 208, 218 (1986) (“[T]he possibility of future increases in the cost of administering the election system is not a sufficient basis here for infringing appellees’ First Amendment rights.”). This principle should apply with maximum force in a case that concerns voters’ rights and where the requested relief will not require any training of municipal clerks or retraining of poll workers. Poll workers are, of course, not involved in absentee ballot delivery, and municipal clerks’ office staff already have longstanding experience with email delivery.

The district court’s fail-safe remedy of electronic transmission as an alternative ballot delivery method will only slightly increase the administrative burdens on WEC and municipal clerks in just one respect. Remaking or duplicating ballots is necessary when a ballot is electronically transmitted to the voter, so that the voter’s choices can be scanned and tabulated. App. 85–86. That will mean some additional back-end work during the processing and counting of ballots, but it is far outweighed by the benefits of preventing the disenfranchisement of diligent voters through ballot processing and delivery delays and failures and reducing demand for

and strain on polling places on Election Day. The district court observed that the only declarations from municipal clerks in the record showed that “local election officials themselves represent that this inconvenience is outweighed by the benefit of having fewer, in-person voters on election day.” App. 86.

Furthermore, the record contains declarations from three municipal clerks (two current and one former) for three of Wisconsin’s largest municipalities, all noting that the duplication of electronically-delivered ballots is not an extreme hardship and more than justified by its enfranchising effects. *See* *dk. 382*, Witzel-Behl Decl. ¶ 14 (representing that “value to voters who are trying to vote—and vote safely—would far outweigh any inconvenience or burden to my staff and those canvassing ballots at polling places”); *dk. 383*, Declaration of Racine City Clerk Tara Coolidge (“Coolidge Decl.”) ¶¶ 9–10 (same); *dk. 384*, Salas Decl. ¶ 16 (same). And because the cut-off for email delivery of replacement ballots under the preliminary injunction is October 29, five days in advance of the election, that leaves sufficient time according to Racine City Clerk Coolidge to ensure adequate staffing at polling places to remake or duplicate ballots. *Dkt. 383*, Coolidge Decl. ¶¶ 9–12. There is no evidence in the record to support the notion that the injunction will prove unduly burdensome for state and local election officials. As the district court concluded, a voter’s burden when a ballot does not arrive in the mail “is not outweighed by the interests of the State.” App. 86.

Purcell, therefore, provides no basis to stay the district court’s order permitting domestic civilian voters to request email delivery of *replacement* absentee ballots when their initially-requested ballots do not arrive in the mail.

III. The Legislature is unlikely to succeed on the merits of its appeal.

The Legislature is unlikely to prevail on the merits because the burdens on voters, particularly COVID-19-vulnerable voters, are extremely severe when a timely-requested absentee ballot does not arrive in the mail. Yet no state interest has been identified to justify this severe burden under the *Anderson-Burdick* balancing test.

On March 11, 2020, the same day the World Health Organization declared the novel coronavirus a pandemic, Plaintiff Katherine Kohlbeck received devastating news: she had breast cancer, a potentially deadly condition in and of itself, but also one that puts her at increased risk of severe illness or death from COVID-19. Due to the pandemic, her life-saving surgery to remove the cancer would be postponed to May—but, as a prerequisite for her surgery, she would need to test negative for COVID-19. And so when her mail ballot for the April 7 election failed to arrive by Election Day, she faced a stark choice: risk her life to vote in person, or lose her right to vote. Unconstitutionally forced to make this impossible choice, Plaintiff Kohlbeck lost her right to vote. *See* dkt. 372, Kohlbeck Decl. ¶¶ 3–9.

Stories like the this are all too common. At least one-third of Wisconsin adults are at increased risk from COVID-19 due to their age and/or a preexisting condition. *See* dkt. 370, Declaration of Dr. Megan Murray (“Murray Decl.”) ¶ 79. The

district court agreed that forcing voters to make these kinds of choices violates the Constitution and enjoined a statutory restriction on electronic ballot delivery so that voters who timely request mail-in ballots but fail to receive them can request that a replacement ballot be electronically transmitted to them between October 22 and October 29. App. 52–54.

The minimal discussion of the merits in the Seventh Circuit’s stay order shows that court demonstrably erred in staying the distinct relief afforded to the *Gear* Plaintiffs by relying upon a clearly erroneous reading of the record and failing to give the district court’s factual findings proper deference. *See Purcell*, 549 U.S. at 5. In conflating the distinct claims and remedies in these four consolidated cases, the Seventh Circuit appears to have overlooked the unique harm established by the *Gear* Plaintiffs’ evidence.

To the extent the Seventh Circuit considered the merits of the *Gear* action, the court erred in concluding the Legislature was likely to succeed on the merits of the appeal. For *Anderson-Burdick* claims alleging an undue burden on the right to vote, this Court has developed the following test:

[T]he rigorousness of our inquiry into the propriety of a state election law depends upon the extent to which a challenged regulation burdens First and Fourteenth Amendment rights. Thus, as we have recognized when those rights are subjected to “severe” restrictions, the regulation must be “narrowly drawn to advance a state interest of compelling importance.” *Norman v. Reed*, 502 U.S. 279, 289, 112 S.Ct. 698, 705, 116 L.Ed.2d 711 (1992). But when a state election law provision imposes only “reasonable, nondiscriminatory restrictions” upon the First and Fourteenth Amendment rights of voters, “the State’s important regulatory interests are generally sufficient to justify” the restrictions. *Anderson*, 460 U.S., at 788, 103 S.Ct., at 1569–1570; *see also id.*, at 788–789, n. 9, 103 S.Ct., at 1569–1570, n. 9.

Burdick v. Takushi, 504 U.S. 428, 434 (1992). “A court considering a challenge to a state election law must weigh the character and magnitude of the asserted injury to the rights protected by the First and Fourteenth Amendments that the plaintiff seeks to vindicate against the precise interests put forward by the State as justifications for the burden imposed by its rule, taking into consideration the extent to which those interests make it necessary to burden the plaintiff’s rights.” *Id.* at 434 (citations and quotation marks omitted).

The district court granted an exceedingly narrow remedy to ensure diligent, but vulnerable, voters could still cast their absentee ballots: “[T]he relief requested is narrowly tailored only to those voters who timely fulfilled all of the necessary steps to vote by mail, but were thwarted through no fault of their own.” App. 85. But, again, the Seventh Circuit mistakenly focused only on voters who apply for absentee ballots at the “last minute,” App. 4, not voters who apply weeks or more in advance, as Plaintiffs did. The Seventh Circuit thus demonstrably erred in failing to consider the circumstances of the *Gear* Plaintiffs and record evidence of similarly-situated voters who did *not* wait until the “last minute” but still failed to receive a ballot in the mail. App. 84–85.

Moreover, it was the *Gear Plaintiffs* who suggested to the district court that this narrow remedy could be further narrowed by limiting eligibility for this back-up option to voters who had applied for an absentee ballot some number of days in advance of the fail-safe period to obtain a replacement ballot by email. *See* dkt. 505 at 34. If the Seventh Circuit sought to incentivize diligent voter behavior while

safeguarding voters' rights in keeping with this Court's precedents, that would counsel in favor of modifying the preliminary injunction in accordance with Plaintiffs' original suggestion, not staying the relief in full.

In this case, the district court applied the *Anderson-Burdick* framework and correctly concluded that the confluence of the COVID-19 pandemic, USPS's delivery delays and failures, and WEC's ongoing challenges in meeting the unprecedented demand for mail-in absentee ballots necessitates limited relief to guarantee that voters have a fail-safe option when their ballots do not arrive in the mail on time or at all:

[T]he evidence is nearly overwhelming that the pandemic *does* present a unique need for relief in light of: (1) the experience during the Spring election, (2) much greater projected numbers of absentee ballot requests and votes in November, and (3) ongoing concerns about the USPS's ability to process the delivery of absentee ballot applications and ballots timely. None of this was remotely contemplated by the Legislature in fashioning an election system based mainly in person voting, nor addressed by the Seventh Circuit's recent decision in *Luft*.

App. 85 (emphasis in original). The district court found that the record was "replete" with examples of voters not receiving their ballots on time or at all. App. 84–85. Under these exigent circumstances, the district court's relief was necessary in order to comply with the Seventh Circuit's instruction that because "the right to vote is personal" . . . 'the state must accommodate voters' who cannot meet the state's voting requirements 'with reasonable effort.'" App. 66 (quoting *Luft*, 963 F.3d at 669). A voter who does not receive a timely-requested ballot in the mail and cannot safely vote in person at the polls is denied their right to vote without any justification—the *Anderson-Burdick* burdens-versus-interests balancing scales tip

decisively in one direction. Accordingly, as the district court concluded, vulnerable voters' rights will depend on this fail-safe remedy and, therefore, this was indeed a case for intervention to protect a narrow subset of voters from disenfranchisement, in compliance with this Court's precedents: "Finding that plaintiffs are likely to succeed on their claim that limiting receipt of absentee ballots to mail delivery burdens voters' rights who fail to receive their absentee ballot timely, and that this burden is not outweighed by the interests of the State, the court will grant that relief." App. 85–86.

Luft v. Evers—a case decided on a record developed long before the COVID-19 pandemic, the concomitant surge in demand for mail ballots, and USPS delivery breakdowns—does not change the above calculus and does not foreclose this action. Even a holistic analysis of Wisconsin's entire election code provides no recourse for voters who do not receive their ballot in the mail and cannot vote safely in person due to their age or comorbidities and, therefore, no defense against this *Anderson-Burdick* claim. *Luft*, 963 F.3d at 671–72. As the district court found, voters will reasonably conclude that they cannot safely vote in person due to COVID-19. App. 51 ("[T]he aged, those with comorbidities or those lacking confidence in the ability of local officials and the public to get all those [COVID-19 infection control] factors right are understandably less confident in that assessment."). Because no law safeguards the right to vote safely during this pandemic when a mail-in absentee ballot is not delivered, judicial intervention was necessary to safeguard vulnerable voters' rights in these exigent (and hopefully rare) circumstances.

The Legislature has argued that Plaintiffs can vote in person safely, R. 9-1 at 17,⁶ but this argument is completely undermined by the epidemiological evidence in the record, which the district court credited, App. 23, and the evidence of unsafe conditions at polling places. *See, e.g.*, *dk.* 386, Declaration of Barbara Keresty ¶¶ 3–7. Relying on expert witness evidence, the district court found that the COVID-19 pandemic poses an extremely serious danger to in-person voters, particularly those at higher risk. App. 23 (“[P]laintiffs have produced a credible expert report that concludes in-person voting in November will continue to pose ‘a significant risk to human health’ due to the COVID-19 pandemic.”) (citation omitted). The threat of airborne transmission in indoor settings where people congregate is real, substantial, and not meaningfully mitigated by any of the available protective measures. *See* *dk.* 370 Murray Decl. ¶¶ 6-20, 32–44, 48–56; *see also* *dk.* 490, Reply Declaration of Dr. Megan Murray (“Murray Reply. Decl.”) ¶¶ 1-3; *dk.* 490-1. This is especially so given pre-symptomatic and asymptomatic voters can unwittingly transmit SARS-CoV-2. *See* *dk.* 370, Murray Decl. ¶¶ 8-9, 32–42. The district court found that “[c]ertain individuals, such as those who are elderly, immunocompromised or suffer comorbidities, are at a greater risk for complications from COVID-19” and that in-person appearances pose too great a risk of COVID-19 exposure and therefore severely restrict their right to vote. App. 42; *see also* App. 72 (noting registration cut-off “will likely restrict many Wisconsin citizens’ freedom to exercise their right to vote, at least without having to take unnecessary risks of

⁶ Citations to the docket of the action below in the consolidated Seventh Circuit proceedings, 20-2835, take the form “R. ____.”

COVID-19 exposure by registering in person, and for some significant minority of citizens, will severely restrict that right because of age, comorbidities or other health concerns”); *see also* App. 14 (Rovner, J., dissenting) (“[L]eaving one’s home and joining other voters at the polls carries with it a genuine risk of becoming seriously ill.”). These findings were entitled to deference, absent a showing of clear error. Forcing voters to take this risk is *per se* a severe burden on the right to vote. App. 28 (Rovner, J., dissenting) (noting “the unacceptable risks that in-person voting presents to the citizens of Wisconsin”). Given the overwhelming record evidence of the risks to COVID-19-vulnerable voters from voting in person at a polling place, if these individuals cannot vote safely absentee by mail, they cannot vote at all.

Furthermore, Wisconsin is experiencing alarming rates of infection, hospitalization, and death from COVID-19. As the district court found, “with flu season yet to arrive, Wisconsin has already broken numerous new case records this month, with over 2,000 new cases reported on September 17, 2020, up from a daily average of 1,004 just one week prior.” App. 52; *see also* App. 13 (Rovner, J., dissenting) (“[I]t is only *now* that Wisconsin is facing crisis-level conditions. . . . Wisconsin infection rates in early May were less than one quarter of what they are now.”) (emphasis in original).⁷

⁷ Judge Rovner added: “As of Tuesday, October 6, a seven-day average of 2,346 new cases of Covid-19 was reported. The Governor has declared a public health emergency. A draft report from the White House Coronavirus Task Force dated Monday of last week described a ‘rapid worsening of the epidemic’ in Wisconsin and placed the State in the ‘red zone’ for Covid-19 cases, with the third-highest number

Accordingly, the Legislature is unlikely to prevail on the merits.

IV. The other equitable *Nken* factors also militate in favor of vacating the stay.

The Seventh Circuit also demonstrably erred in granting the Legislature’s stay motion because the Legislature failed to articulate an irreparable harm. “The first two factors of the traditional standard are the most critical.” *Nken*, 556 U.S. at 434. The Legislature states merely, “[T]he inability [of the State] to enforce its duly enacted plans clearly inflicts irreparable harm on the State’ by interfering with its sovereignty.” R. 9-1 at 20. It appears to contend that an injunction against a Wisconsin law per se causes irreparable harm to the Legislature, but there is no majority opinion from this Court or the Seventh Circuit that stands for that proposition. *Maryland v. King*, 567 U.S. 1301, 133 S. Ct. 1 (2012) (Roberts, C.J., in chambers), and *New Motor Vehicle Bd. of Calif. v. Orrin W. Fox Co.*, 434 U.S. 1345 (1977) (Rehnquist, J., in chambers), relied on concrete evidence of irreparable harm to the states’ interests, not a mere abstraction. *See, e.g., King*, 133 S. Ct. at 3 (“Here there is . . . an ongoing and concrete harm to Maryland’s law enforcement and public safety interests. . . Collecting DNA from individuals arrested for violent felonies provides a valuable tool for investigating unsolved crimes and thereby

of such cases per 100,000 population in the country and seventh-highest test positivity rate. Nearly half of all Wisconsin counties now have high levels of community transmission. Coronavirus Task Force, State Report—Wisconsin, at 1 (Sept. 27, 2020). Hospitalization rates are at record highs in the State, with facilities in northeast Wisconsin approaching capacity due to the surge in Covid-19 cases . . .” App. 20-21 (Rovner, J., dissenting). The Legislature no longer argues that it is speculative that COVID-19 transmission will be continuing through Election Day. *See* dkt. 454 at 125.

helping to remove violent offenders from the general population. . . . That Maryland may not employ a duly enacted statute to help prevent these injuries constitutes irreparable harm.” (internal citation omitted) (emphasis added)); *New Motor Vehicle Bd. of Calif.*, 434 U.S. at 1351 (holding that state’s interest in “examining the proposed relocations” of car dealerships is “infringed by the very fact that the State is prevented from engaging in investigation and examination”).

Here, the Legislature has not identified any specific, irreparable harms to the state’s interests that the district court’s injunction will cause. The little it did say in its stay motion, pointing to hypothetical administrative burdens on municipal clerks, *see* R. 9-1 at 16- 17, 21, is contradicted by municipal clerk declarations in the record. *Supra* at 27–28. Instead of baldly asserting that third parties would face substantial burdens, the Legislature could have substantiated its argument with declarations from one of the state’s 1,850 municipal clerks. The district court could not consider evidence that was not presented, and its factual finding that electronic delivery of replacement ballots would benefit clerks and voters alike is owed deference. The district court considered the burden the fail-safe option would impose on clerks, but correctly concluded that administrative burden did not outweigh the burden on the right to vote of individuals who need to cast an absentee ballot to protect their health but fail to receive their ballots by mail. App. 85–86. The district court’s analysis thus conforms to this Court’s precedent holding that increased administrative costs cannot override rights protected by the First Amendment. *Tashjian*, 479 U.S. at 218. If such costs cannot override these rights, it

follows that they also cannot constitute irreparable harms. Because the Legislature has failed to identify any irreparable harm, the Seventh Circuit’s stay should be vacated.

Finally, the public interest strongly favors vacating the stay of this narrow relief to protect voters’ rights. *Democratic Exec. Comm. of Fla. v. Lee*, 915 F.3d 1312, 1322 (11th Cir. 2019) (“Without a doubt, Florida has a legitimate and strong interest in preventing voter fraud. But that interest is not mutually exclusive of vote-by-mail and provisional voters’ interest in not being disenfranchised through no fault of their own.” (internal citation omitted)); *Obama for Am. v. Husted*, 697 F.3d 423, 436–37 (6th Cir. 2012) (“While states have ‘a strong interest in their ability to enforce state election law requirements,’ the public has a ‘strong interest in exercising the ‘fundamental political right’ to vote.’ ‘That interest is best served by favoring enfranchisement and ensuring that qualified voters’ exercise of their right to vote is successful.’ (internal citations omitted)). The district court’s fail-safe remedy authorizes the extension of electronic ballot delivery, as is already in use for military and overseas voters, to ensure no voter is disenfranchised through no fault of their own. This is manifestly in the public interest, because vindicating constitutional rights always serves the public interest. *See Elrod v. Burns*, 427 U.S. 347, 373 (1976) (plurality opinion) (“The loss of First Amendment freedoms, for even minimal periods of time, unquestionably constitutes irreparable injury.”).

Voters and election administrators alike have been forced to adapt to the COVID-19 pandemic. As the district court found, this has meant overwhelmed

election office staff and USPS workers trying but failing to handle an unprecedented shift to mail-in absentee balloting. App. 44–46, 51–54, 79–86. It has also caused Wisconsin voters to seek to protect themselves by voting by mail in unprecedented numbers. Voters who are at higher risk from COVID-19 cannot vote safely in person when their requested ballot does not arrive in the mail, and it is unreasonable for the state to require them to risk their health to cast a ballot they timely requested but never received. The *Gear* Plaintiffs, including the two organizational plaintiffs League of Women Voters and Wisconsin Alliance for Retired Americans who assist and educate voters who have failed to receive their ballots in the mail, were determined to prevent a recurrence of this mass disenfranchisement. The district court’s narrow relief ensures that no voter will lose their right to vote when a ballot is lost in the system. That relief should be allowed to take effect.

CONCLUSION

Respectfully, Plaintiffs request that this Court vacate the stay as to the part of the preliminary injunction authorizing the electronic delivery of replacement ballots to domestic civilian voters when their timely-requested ballot does not arrive in the mail.

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Respectfully submitted,

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